

STATEMENT

**STATE OF CONNECTICUT**

**OFFICE OF POLICY AND PROCEDUREMANAGEMENT**



**INVENTORY OF STATE REAL PROPERTY**

**IN ACCORDANCE WITH CGS 4-67G**

—Submitted by the Office of Policy and Management

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Section: NLLS Board | Chapter: Vision and Policy Statements | Page(s): 2-2 of Connecticut General Statute 4-67g, requires the Office of Policy and Management (i.e. “OPM”) to maintain an inventory of State real property, both owned and leased. In addition the statute requires that OPM annually submit copies of the inventories to the joint standing committees of the General Assembly having cognizance of matters relating to government administration and appropriations and the budgets of state agencies. A copy of CGS 4-67g is included in *Appendix A* of this document.

Currently, in order to produce the most complete inventory of the State’s real property it is necessary to combine three (3) separate sources:

1.

- ~~1. The State building inventory contains information on structures that are owned by the State of Connecticut. This inventory is currently maintained by the OPM and information is self-reported by those agencies that have custody and control over State-owned buildings.~~

~~a) —~~

The Subject: **GOVERNANCE & POLICY DEVELOPMENT** | Sec 2, 1B

Reviewed: 2021/11/06 | Revised: 2021/11/27 | Effective: 2017/05/13

## SECTION 2 – 1.B

### GOVERNANCE

- ~~1. Role of the Board and TrusteeState leasing inventory contains information on those locations that are leased by the State of Connecticut to~~
- ~~2. The Board shall meet and deliberate at specific its realty needs. The information is currently maintained by the Department of Administrative Services (i.e. “DAS”).~~
- ~~3. Payment in Lieu of Taxes (i.e. “PILOT”) information this program provides payment in lieu of local property taxes (PILOT) to municipalities for property owned and regular times used by the State of Connecticut; however, it does not include personal property owned by the State or property used for highway purposes.~~

Within the confines of existing resources, it is the intention of the OPM to combine these separate data sources into a single, comprehensive inventory.

CGS 4-67g requires OPM to:

- ~~1. Identify existing buildings that are of historic, architectural or cultural significance, including buildings listed or eligible to be listed in the national register established under the National Historic Preservation Act of 1966.~~

This is accomplished as ~~determined by its members~~ part of the inventory of State-owned buildings which includes a field called “*On/Eligible for Historic Register*”. The agency with custody and control over the building is required to determine and report this information to OPM.

- ~~a) Identify existing buildings that would be suitable, whether or not in need of repair, alteration or addition, to meet the public building needs of the state or to meet the needs of the public in accordance with the Alberta Libraries Act provisions of subsection (m) of section 4b-23.~~
- ~~b) The Board shall exercise its role as public trustees for the Municipalities that comprise make up the Northern Lights Library System (NLLS). OPM does not currently~~
  - ~~c) The Board is responsible for creating a vision of library service for the System, articulating values, and principles, setting goals, developing effective governance policy, monitoring library performance, and meeting provincial standards.~~
  - ~~d) The Board member is appointed by their council and, while representing the interest of their community, are required to act in the interest of NLLS.~~
  - ~~e) The Board is responsible for orienting new members to their roles and responsibilities as trustees.~~
  - ~~f) Board members are responsible for ensuring they understand their responsibilities as trustees.~~
  - ~~g) The Board maintains a membership in the Alberta Library Trustees Association (ALTA) to ensure its trustees have access to appropriate professional development opportunities and the resources.~~
- ~~2. Trustee Checklist~~
  - ~~a) An easy way for Board members to understand their responsibilities more clearly and to meet them is to use checklists like the ones below. The Alberta Library Trustees’ Association has many learning resources for trustees. There are learning modules available for personal learning or sharing with Boards on ALTA’s website: <http://www.librarytrustees.ab.ca/trustee-learning>.~~
  - ~~b) The following are some tools to help with becoming an effective board member.~~
- ~~3. Expectations of a Board Member:~~
  - ~~a) Acknowledge attendance minimum of one (1) week before in advance of meeting(s). Notify the NLLS administration of their intention to attend scheduled meetings one (1) week in advance.~~
  - ~~b) Arrive at meetings on time prepared to actively participate.~~

- c) Prepare reports, motions, etc., in writing if necessary to make such determination; however, to the extent possible, and submit them to the NLLS administration Board Secretary in sufficient time for distribution before the meeting.
- d) Read Board material in advance of meetings, noting comments and questions.
- e) Follow through on assigned activities.
- f) Notify the Chair in plenty of time about items for the agenda.
- g) Develop a working knowledge of the Board manual materials and applicable legislation.
- h) Maintain friendly, positive relationships with other Board members and staff.
- i) Ask clarifying questions.
- j) Participate in discussion and decision-making, ensuring that you offer your relevant comments and suggestions prior to the Board's decisions.
- k) In addition to these general responsibilities, Board members are expected to serve on committees as required.
4. The Job of the Board is to liaise with the municipalities and members' libraries to:
- a) Determine NLLS's strategic direction through a plan of service. what they want the System to be through the plan of service.
- b) Determine how what NLLS-OPM will be governed system should accomplish by developing policies.
- c) Prioritize Determine service levels through the development of an the annual budget.
- d) Advocate for the interests of the Northern Lights Library System and other library services in Alberta.
- e) Create partnerships with other agencies to achieve the System's vision, mission, beliefs, goals, and objectives.
5. Write governing policies which, at the broadest levels, define:
- a) Vision, Mission, Belief, Goals, and Objectives: Which long-range benefits will be achieved for whom, and at what cost.
- b) Governance Process: How the Board conceives, carries out and monitors its own job.
- c) Board / Executive Director Relationship: Establish policies that govern the relationship between Board as a whole and the Executive Director, and between the elected Executive and the Executive Director.
- d) Executive Director / Employee Relationship: Establish policies that govern all aspects of organization operations with input from the Executive Committee. For Example: HR policies, IT policies etc.
- e) Executive Director's Parameters: Those boundaries of prudent and ethical behavior endeavor, within which the Executive Director can operate.
6. Develop and approve a three-year plan of service or a strategic plan, a rolling three-year budget, the provincial annual report, and audited financial statements.
7. Recognize the value and contributions of long-serving employees(s), volunteers, and trustees.
8. Monitor achievement efficacy and or compliance with policies against criteria, the Board has previously set, using:
- a) reports by the Executive Director.
- b) reports from member municipalities, members' libraries, and outside agencies.
- c) direct inspection by the Board.
9. Use the results of this monitoring to inform regular policy revision. improve performance by:
- a) reviewing existing policies as per review schedule resources, to make improvement in this area over time.
- b) revising existing policies as required
- c) formulating new policies as required
10. The term of office of the Northern Lights Library System Board Chair is limited to two (2) consecutive two (2) year terms, unless at least 2/3 of the whole board passes a resolution stating that the Chair may be reappointed for more than two (2) consecutive terms.
11. Notwithstanding the Systems agreement mandatory seats, the term of office for a Northern Lights Library System Executive Member is limited to two (2) consecutive two-year terms, unless at least 2/3 of the whole board passes a resolution stating that member may be reappointed for more than two (2) consecutive terms.
12. Meet a minimum of four (4) times per year as per the Libraries Act, Section 33, and as defined in the Northern Lights Library System Agreement. A quorum of the Board shall be a simple majority of the entire board plus one (1). Meetings can be held at NLLS headquarters or virtually.
13. Create procedures providing for the orientation and ongoing development of trustees as they fulfill their ethical and legal duties to the regional library system.

**Commented [JM1]:** Redundant with c

**Commented [JM2]:** Redundant and awkward. See Policy Making and Policy Statements Policy

**Commented [JM3]:** There are already term limits in the Libraries Act

**Commented [JM4]:** Redundant with the Procedural policy.

## **POLICY MAKING-DEVELOPMENT**

The Board believes that Policies provide parameters for the action of the Board, its committees, staff, and member libraries. The Board expects Northern Lights Library System's people to know the policies related to their duties. Northern Lights Library System As per The Library Act and Regulation the Board exercises responsible governance by establishing policies, which forms a framework within which the Northern Lights Library System Board and staff will carry out their duties.

1. The Board is responsible for the policies adopted by NLLS Northern Lights Library System.
2. With assistance from the administration, the Northern Lights Library System Board regularly reviews existing policies to ensure that they are up to date, in keeping with the government legislation and regulations and reflecting evolving needs of the System, by:
  - a) All policies are reviewed annually.
  - b) The most current Plan of Service shall supply content guidance.
  - c) A list of policies, together with prescribed reviewed dates of each policy, shall be maintained for the Board for their review.
  - d) Policies requiring revision shall be presented to the Executive Committee for review before proceeding to a vote of the Board.
  - e) Policy review dates will be expressly recorded on the policy, tracked, and acknowledged through signature by the Board Chair.
3. Policies shall be:
  - a) Proposed by any stakeholder in the operation and management of Northern Lights Library System to the Executive Committee via the Board Policy Review Committee.
  - b) Monitored by the Executive Director and Executive Committee.
  - c) Approved by the Board as a whole.

Commented [JM5]: See 1C - redundant

## **Policy Development**

1. Policies will be developed and reviewed by the Board Policy Review committee with assistance from NLLS staff and administration throughout the calendar year.
2. The Executive Director will maintain a schedule for the annual review of all policies and bring forward new and updated policies to the Policy Review Committee.
3. The Board Policy Review Committee will:
  - a) track all policies and faithfully record review dates.
  - b) draft, revise, or update policies as requested by the Executive Committee.
  - c) review all policies annually and regularly bring policies forward to the Executive Committee for review or revision when required.
  - d) forward electronically all policies and policy revisions to the Executive Director to distribute to all staff for their feedback a minimum of five (5) business days before presentation to the Executive Committee.
  - e) consider all feedback and policies submitted by staff, or interested stakeholders, and act in the best interest of Northern Lights Library System.
4. The Executive Committee will:
  - a) consider all policies submitted by the Board Policy Review Committee, and act in the best interest of the Northern Lights Library System.
  - b) forward electronically all policies they approve for adoption or revision to the entire Board and NLLS staff 21 days before a vote is taken.
5. The Board will:
  - a) Individually review all new or revised policies in advance of any vote.
  - b) Provide feedback, concerns, or questions regarding proposed policies to the Executive Committee and/or Policy Review Committee Chair at least 48 hours prior to the meeting scheduled for a vote.
6. When presenting the Board with new or revised policies for a vote:
  - a) they will be presented as a package (an omnibus motion).
  - b) motions to remove one (1) or more policies from the policy package (omnibus motion) for a separate vote will be entertained.
  - c) amendments of policies will not be entertained at the General Board meetings.
  - d) defeated policies will be sent back to the Policy Review Committee for further review.

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It should be noted that subsection (m) of section 4b-23 does not speak to the building needs of the State or public but rather that section speaks to renewable energy sources in State buildings. Specifically CGS 4b-23(m) states:

*(m) (1) Plans to construct, renovate or modify state-owned or occupied buildings shall provide for a portion of the total planned floor area of newly constructed state buildings or buildings constructed specifically for use by the state to be served by renewable sources of energy, including solar, wind, water and biomass sources, for use in space heating and cooling, domestic hot water and other applications. For the plan due December 1, 1979, the portion to be served by renewable energy sources shall be not less than five per cent of total planned new floor area. For each succeeding state facilities plan submitted after December 1, 1979, the portion of the total planned floor area of any additional newly constructed state buildings or buildings constructed specifically for use by the state to be served by renewable energy sources shall be increased by at least five per cent per year until a goal of fifty per cent of total planned floor area of any additional newly constructed state buildings or buildings constructed specifically for use by the state is reached. For any facility served by renewable energy sources in accordance with this subsection, not less than thirty per cent of the total energy requirements of any specific energy application, including, but not limited to, space heating or cooling and providing domestic hot water, shall be provided by renewable energy sources. The installation in newly constructed state buildings or buildings constructed specifically for use by the state of systems using renewable energy sources in accordance with this subsection, shall be subject to the life cycle cost analysis provided for in section 16a-38. (2) The state shall fulfill the obligations imposed by subdivision (1) of this section unless such action would cause an undue economic hardship to the state.*

While OPM is not aware of what section was specifically intended, subsection (n) of 4b-23 requires the State Facility Plan ([www.ct.gov/opm/property](http://www.ct.gov/opm/property)) to include various policies including ones to encourage public pedestrian traffic in, through and around State buildings and encourage the public use of State buildings.

**IMPORTANT NOTE: Copies of the Inventories**—While CGS 4-67g states that OPM shall submit copies of the inventories to the joint standing committees, complete copies of the State building inventory would be well in excess of 1,000 printed pages,

therefore the complete building inventory, along with the inventory of leased locations and PILOT information is made available electronically (Microsoft Excel format) on the OPM website at [www.ct.gov/opm/property](http://www.ct.gov/opm/property)

## Appendix A

~~Sec. 4-67g. State real property: Long range planning, efficiency and appropriateness of use and inventories. Secretary approval re ownership and use.~~ (a) The Office of Policy and Management shall be responsible for: (1) Long range planning with regard to the use of all state real property; (2) determining the level of efficiency of each and every state agency's use of any and all real property under its control; (3) maintaining an inventory of state real property; (4) maintaining an inventory of real property leased by state agencies; and (5) determining the appropriate use of state real property.

~~(b)~~ In creating and maintaining such inventories, the secretary shall make recommendations concerning the reuse or disposition of state real property and identify in such inventories existing buildings that (1) are of historic, architectural or cultural significance, including buildings listed or eligible to be listed in the national register established under the National Historic Preservation Act of 1966, 80 Stat. 915 (1966), 16 USC 470a, and (2) would be suitable, whether or not in need of repair, alteration or addition, to meet the public building needs of the state or to meet the needs of the public in accordance with the provisions of subsection (m) of section 4b-23. At the request of the secretary, the Commissioner of Economic and Community Development shall advise the secretary as to whether such buildings are of historic, architectural or cultural significance.

~~(c)~~ All state agencies shall provide the secretary, in the manner and form prescribed by the secretary, with any information requested by said secretary for purposes of maintaining the inventories required by this section.

~~(d)~~ The secretary shall update such inventories not less than annually and shall provide the Commissioner of Administrative Services with a copy of such inventories whenever the inventories are updated.

~~(e)~~ Not later than July 1, 2016 and annually thereafter, the Secretary of the Office of Policy and Management shall submit a copy of such inventories, in accordance with the provisions of section 11-4a, to the joint standing committees of the General Assembly having cognizance of matters relating to government administration and appropriations and the budgets of state agencies.

~~(f)~~ Each state agency shall request and obtain the written approval of the secretary or his or her designee prior to any (1) change in ownership of state real property, (2) change in use of state real property, (3) use of state real property by an entity other than a state agency, or (4) use of state real property by a state agency other than the state agency with custody and control over such state real property. For purposes of this subsection, "state agency" does not include a constituent unit of the state system of higher education, a technical high school or an agency in the legislative or judicial branch of state government.

~~(g)~~ Except as otherwise provided, for the purposes of this section, "state real property" means any improved or unimproved real property owned by a state agency, and "state agency" means any office, department, board, council, commission, institution, constituent unit of the state system of higher education, technical high school or other agency in the executive, legislative or judicial branch of state government.